

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS AND THE STATE BOARD OF MARRIAGE AND FAMILY THERAPIST
EXAMINERS

STATE OF COLORADO

Case Nos. 2014-2079, 2014-2094, 2014-2095, & 2014-2081

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING AND
THE LICENSE TO PRACTICE MARRIAGE AND FAMILY THERAPY IN THE STATE OF
COLORADO OF GEORGE CUMMINGS, LPC 4661, MFT 793,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners and the State Board of Marriage and Family Therapist
Examiners ("Boards") and George Cummings ("Respondent") as follows:

1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Professional Counselor ("LPC") and as a Marriage and Family Therapist ("MFT") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of case numbers 2014-2079, 2014-2094, 2014-2095, and 2014-2081. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent has acted or failed to act in a manner that does not meet the generally accepted standards of practice as a LPC or MFT.
 - b. Respondent has maintained inappropriate, sexual relationships with one or more clients that are likely to impair Respondent's professional judgment or increase the risk of client exploitation.
 - c. Respondent has engaged in sexual conduct or behavior with one or more clients during the periods of time in which therapeutic relationships exist or for up to two years after the periods in which such relationships exist.
 - d. Respondent has admitted to a professional colleague and others that he has had sexual contact or intercourse, or sexual affairs, with one or more clients.

- e. Respondent's conduct constitutes boundary violations.
 - f. Respondent has admitted to the Board that he had an inappropriate relationship with a client and should no longer be practicing as a LPC or MFT.
 - g. Respondent has indicated that he wishes to relinquish his LPC and MFT licenses.
5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Boards find that Respondent violated §12-43-222(1)(g), (i), and (r), C.R.S.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes his LPC and MFT licenses and the right to practice as a professional counselor and marriage and family therapist in the State of Colorado, commencing from the effective date of this Order, and requests that the Boards accept such relinquishments. Such relinquishments shall have the same force and effect as revocations ordered by the Boards. Respondent agrees not to reapply for licensure as a professional counselor or marriage and family therapist in the State of Colorado.

7. Following relinquishment of his licenses, Respondent shall not perform any act requiring a license to practice.

8. Respondent also agrees not to register as a psychotherapist in the State of Colorado nor will Respondent perform any act constituting psychotherapy as defined under §12-43-201(9), C.R.S.

TERMS AND CONDITIONS

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order

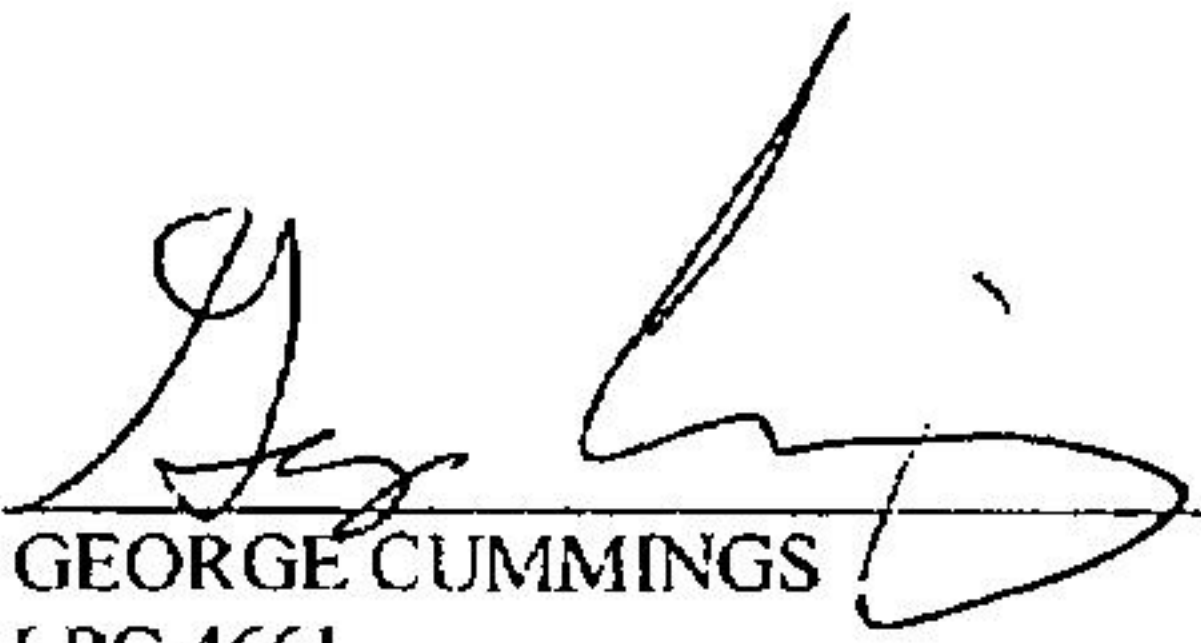
is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

15. This Order shall be admissible as evidence at any hearing held before the Boards.

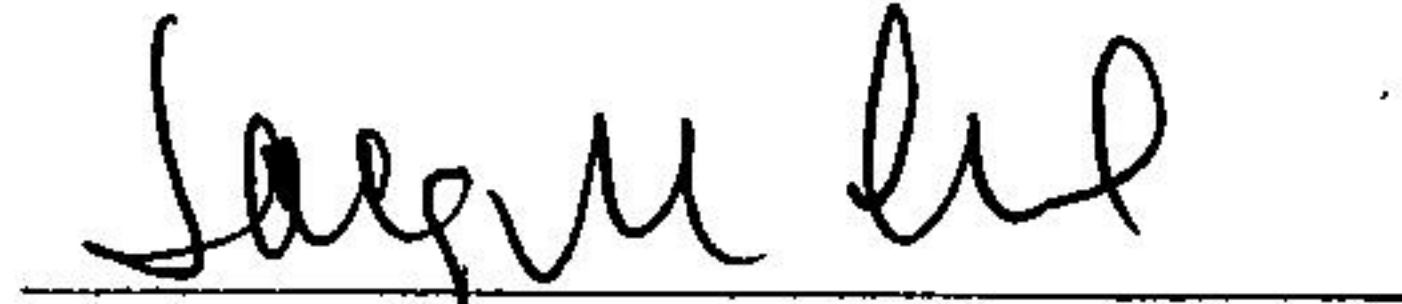
AGREED TO AND ACCEPTED BY:

RESPONDENT


GEORGE CUMMINGS
LPC 4661
MFT 793

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS AND
BOARD OF MARRIAGE AND FAMILY
THERAPIST EXAMINERS


JACQUILINE ARCELIN
Program Director

Effective this 24th day of
June, 2014.